

Smt Shalini vs Dileesh Babu .J on 3 October, 2024

KABC030127202020

Presented on : 18-02-2020
Registered on : 19-02-2020
Decided on : 03-10-2024
Duration : 4 years, 7 months, 14 days

IN THE COURT OF THE VIII ADDITIONAL CHIEF
JUDICIAL MAGISTRATE, BENGALURU CITY

Present: Smt. Deepa.V., B.A.L. LL B.
VIII ACJM, Bengaluru City.

Date: this the 03rd Day of October, 2024

C.C. No.3476/2020

State by Yeshwanthapura Police Station,
Bengaluru. ... Complainant
(Represented by Sri. Vishwanath Senior APP)

Versus

1. Sri Dilish Babu.J.
Aged about 31 years.
S/o Sri Janakiraman,

2. Sri Janakiraman
Aged about 61 years
S/o. Late Sri Danapal
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3. Smt. Komala
Aged about 52 years,
W/o. Sri Janakiraman,
R/at No. 276, 15th Main Road,
Near Government Hospital,
New Bagalur Layout,
St. Thomas Town
Bengaluru-560 084.

... Accused

(Represented By Smt. J.S.Nalini, Advocate)

- | | |
|----------------------------------|---|
| 1. Date of commission of offence | 06/06/2019 till 22/09/2019 |
| 2. Name of Complainant | Smt.Shalini |
| 3. Offences complained of | Under Section 498(A), 506 R/w Sec.34 of IPC and Section 3, 4 of Dowry Prohibition Act |
| 4. Charge | Pleaded not guilty |
| 5. Final Order | Accused are acquitted |
| 6. Date of order | 03-10-2024 |

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JUDGMENT

The Police Inspector of Yeshwanthpura Police Station submitted charge sheet against accused for the offences punishable under Section 498(A), 506 of Indian Penal Code and Section 3, 4 of Dowry Prohibition Act.

2. Prosecution Case: The son of accused No. 2 and 3 namely accused No. 1 was married to the daughter of CW2 and CW3 namely CW1 on 06/06/2019 at Mangaladaama Multi Utility Hall, Indiranagar, Bangalore in accordance with the Hindu Customs and rites in the presence of elders. At the time of marriage accused No. 2 and 3 demanded gold, silver articles and Maruti Swift car as dowry. After the marriage, the accused persons and CW1 were residing at No. 276, 15th Main Road, Near Government Hospital, New Bagalur Layout, St. Thomas Town, Bengaluru-560 084 and was subjected to mental and physical cruelty. On 14/07/2019, the accused persons demanded Rs. 5 lakhs cash as dowry and subjected her to mental and physical cruelty. On 22/09/2019 around 12 pm , the accused No. 1 to 3 went to the house of CW2 and CW3 on the pretext of bringing the CW1 to their house, had a talk wherein they did not give more gold at the time of marriage, did not buy a house in Bangalore, CW1 did KABC030127202020 CC No.3476/2020 not give her salary to them. If they could have got the accused No.1 to marry to other side, they could have given Kgs of gold jewels. Until then, they met their demands, they will not take CW1 to their house and will give divorce to the CW1 and the accused would get married again wherein they could fetch more dowry. They further threatened the CW1 to CW3 that either the CW1 should die or the accused No. 1 to 3 themselves die and caused life threat to them.

3. First Information Report: On the basis of first information given by informant cum CW1 namely Smt. Shalini, CW18-Sri Prashanth Khaanagowda Patel, PSI of Yashwanthapura Police Station registered a Crime No.274 /2019 against the accused for the offenses punishable under Section 498(A), 506 R/w Section 34 of IPC and Section 3, 4 of D.P.Act, prepared FIR and sent the same to the Court and to his superior officers.

4. Investigation: After registration of FIR, CW18 after registration of FIR against accused No. 1 to 3, has handed over the case papers to the CW19. CW19 on the receipt of case papers from CW1, collected the requisite documents and recorded the statement of witnesses. After completion of investigation the IO/CW19 has submitted charge sheet against KABCo30127202020 CC No.3476/2020 accused persons for the offence punishable under Section 498(A), 506 R/w Section 34 of IPC and Section 3, 4 of D.P.Act, .

5. The accused was enlarged on bail by the order dated 16-08-2021

6. Copies of prosecution papers as required U/Sec.207 of Cr.P.C have been furnished to the accused.

7. Charge: After hearing learned Sr.APP and counsel for accused, charge for the offences punishable U/Sec.498(A), 506 read with sec.34 of Indian Penal Code and Section 3, 4 of Dowry Prohibition Act has been framed, read over and explained to the accused No.1 to 3 in the language known to them, who, in turn, pleaded not guilty and claimed to be tried.

8. Prosecution Evidence: The prosecution in order to establish its case cited witnesses, examined two witnesses and exhibited 1 documents. The learned Sr.APP has prayed for issuance of summons to other witnesses, but his prayer was rejected on the ground that no purpose would be served as CW1 and the accused No. 1 has compromised the matrimonial KABCo30127202020 CC No.3476/2020 differences in M C no. 847/2020 and hence the examination of CW2 to CW19 was dispensed with by the order dated 27/08/2024.

9. Accused statement as per section 313 of CrPC: No incriminating material found against the accused No. 1 to 3 from examination under section 313 of CrPC.

10. Heard the arguments. Perused materials on the record.

11. The following point are arises for consideration is as follows;

1. Whether the prosecution proved beyond all reasonable doubt that the son of accused No. 2 and 3 namely accused No. 1 was married to the daughter of CW2 and CW3 namely CW1 on 06/06/2019 at Mangaladaama Multi Utility Hall, Indiranagar, Bangalore in accordance with the Hindu Customs and rites in the KABCo30127202020 CC No.3476/2020 presence of elders. At the time of marriage accused No. 2 and 3 demanded gold, silver articles and Maruti Swift car as dowry.

After the marriage, the accused persons and CW1 were residing at No. 276, 15th Main Road, Near Government Hospital, New Bagalur Layout, St. Thomas Town, Bengaluru-560 084 and was

subjected to mental and physical cruelty thereby resulted in commission of the offences punishable under Sec.498(A) R/w Section 34 of IPC?

2. Whether the prosecution proved beyond all reasonable doubt that on 22/09/2019 around 12 went to the house of CW2 and CW3 on the pretext of bringing the CW1 to their house, had a talk wherein they did not give more gold at the time of marriage, did not buy a house in Bangalore, CW1 did not give KABC030127202020 CC No.3476/2020 her salary to them. If they could have got the accused No. 1 to marry to other side, they could have given Kgs of gold jewels. Until then, they met their demands, they will not take CW1 to their house and will give divorce to the CW1 and the accused would get married again wherein they could fetch more dowry. They further threatened the CW1 to CW3 that either the CW1 to 3 themselves die and caused life threat to them thereby resulted in commission of the offences punishable under Sec. 506 R/w Section 34 of IPC?

3. Whether the prosecution proved beyond all reasonable doubt that after engagement accused received as dowry from CW2 and CW3 at the time of marriage thereby resulted in commission of an offence KABC030127202020 CC No.3476/2020 punishable u/Sec. 3 of Dowry Prohibition Act?

4. Whether the prosecution proved beyond all reasonable doubt that after marriage accused harassing CW1 to bring downy from her parental house for purchase of house and car in the name of Accused No. 1 thereby resulted in commission of an offence punishable u/Sec.4 of Dowry Prohibition Act?

5. What order?

12. The court's findings on the above points are as under:

Point No.1-4 : In the Negative Point No.5 : As per final order KABC030127202020 CC No.3476/2020 REASONS

13. Point No.1 to 4: These points are taken up together for the purpose of common discussion in order to avoid repetition of facts as they form the same part of transaction. In support of prosecution case as narrated in paragraph 2 and the point for consideration in paragraph 11 of this judgment, the prosecution has examined one witness, which is as follows i. CW1 by name Smt. Anitha, being Informant examined as PW1 and deposed that she has identified her signatures on Ex.P1 complaint and the same is marked as Ex.P.1A. Though the PW1 has initially supported the case of prosecution in the chief in examination however in the cross examination of PW1 deposed that

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§ 498A of the Indian Penal Code is not compoundable, but in the nature and circumstances of the case and the situation prevailing, accord is hereby granted to compromise the dispute between the parties and hence joint petition KABC030127202020 CC No.3476/2020 filed in both the cases are hereby allowed."

KABC030127202020 CC No.3476/2020 Thus, it is clear that PW1 has not supported the prosecution case on account of settlement for having arrived in M. C. No. 847/2020. PW1 is the informant cum victim has not supported the prosecution case. Though the prosecution has cross examined her by treating as hostile witness, no favorable evidence from her mouth to support the prosecution case and she has deposed falsely to help the accused.

14. It is seen from the deposition of PW1 that the disputes between the accused and the PW1 have been settled. But the learned APP argued that the Section 498A, 506 R/w Section 34 of Indian Penal code R/w Section 3 and 4 of D P Act is not compoundable case as per section 320 of CRPC and hence the examination of witnesses is necessary but this court dispensed the same on account of amicable settlement arrived between the rival parties to the case. Yes this court agrees with the view of the Learned APP that the section 498A, 506 R/w Section 34 of Indian Penal code R/w Section 3 and 4 of D P Act is not compoundable and the same cannot be compounded as per Section 320 of CRPC. This court places reliance in the case of B.S. JOSHI AND ORS. V. STATE OF HARYANA AND ANR IN THE MATTER OF AIR 2003 SCW 1824, wherein it was held that, KABC030127202020 CC No.3476/2020 "in a case where matrimonial disputes have been resolved between the parties then in that case offence under Section 498A of I.P.C. may be compounded between the parties for according to them an opportunity to settle in life afresh.

15. This court further places reliance upon the decision in the case of Ranjana Banerjee v. Bijay Bhushan Banerjee and Ors., 1996(2) East. Cri. C. 808 (Pat), wherein this lordship observed which runs thus:

"It appears that good sense have been prevailed amongst the spouses and when it became impossible for them to lead conjugal life any further and when the matrimonial home has been broken for all practical purposes, they have decided to withdraw all allegations and counter allegations against each other and get themselves separated on divorce by mutual consent. Although, Section 498A of the Indian Penal Code is not compoundable, but in the nature and circumstances of the case and the situation prevailing, accord is hereby granted to compromise the dispute between the parties and hence joint petition KABC030127202020 CC No.3476/2020 filed in both the cases are hereby allowed."

It further held that after examining the nature of the case and the circumstances, under which the offence has been committed, it would be proper to compound the offence and in my opinion, it would be also meet the ends of justice."

16. ADMITTEDLY, the disputes between the PW₁ and accused have been resolved. The criminal case under 498A, 506 R/w Section 34 of Indian Penal code R/w Section 3 and 4 of D P Act is the off-shoot of the said matrimonial dispute. The parties have come to their terms and in pursuance thereto the CW₁/PW₁ does not intend to proceed with this case and hence she has not supported the prosecution case.

17. In the matter of the KRISHNA vs STATE OF KARNATAKA reported in Laws(Kar) 2014 4 464, wherein it was held that "it would be unfair or contrary to the interest of justice to continue with the criminal proceeding or continuation of criminal proceeding would tantamount to abuse of process of law despite settlement and compromise between the victim and the wrongdoer and whether to secure the ends of justice, it is appropriate that criminal case is put to an end".

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18. Under these circumstances and on account of the preposition laid down by the Hon'ble Apex and Hon'ble High Court, even if other witnesses examined by the prosecution, they did supported the prosecution, would not helpful to the prosecution. In this background, this court feels it is a waste of precious time of the Court in examining other witnesses. Moreover the evidence of other witnesses is only formal in nature. Therefore, the prayer of learned APP is rejected and prosecution evidence is taken as closed and hence the offence under section 498A of IPC with other offences under section 323, 504, 506 of IPC cannot be proved beyond reasonable doubt. Accordingly, this court answers the point No.1 to 4 in the Negative.

19. Point No.5:- In view of the above findings and reasons given on point No.1 to 3, this Court proceeds to pass the following:

ORDER Acting U/Sec.248(1) of the Cr.P.C.

(i) The accused No.1 to 3 found not guilty and acquitted from the offences punishable under Sec.498(A), 506 read with section 34 of Indian Penal KABC030127202020 CC No.3476/2020 Code and Section 3, 4 of Dowry Prohibition Act.

(ii) Accused are set at liberty.

(iii) In view of Section 437-A of Cr.P.C their bail bonds shall be in force for 6 (six) months.

(iv) Ordered accordingly.

(Dictated to the stenographer, typed by steno, verified and corrected by me, then the judgment pronounced by me in the open court, on this the 03rd day of October, 2024) (Deepa.V.), VIII Addl. Chief Judicial Magistrate, Bengaluru City.

ANNEXURE Witnesses examined for the prosecution :

PW1 : Smt. Shalini Documents marked on behalf of the prosecution:

Ex.P1 : Complaint

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Material Objects marked on behalf of the prosecution: NIL Witnesses examined for the defence:Nil Documents marked on behalf of the defence:Nil VIII Addl. Chief Judicial Magistrate, Bengaluru City KABC030127202020 CC No.3476/2020 03-10-2024 Judgment pronounced in the open court vide separately ORDER Acting U/Sec.248(1) of the Cr.P.C.

(i) The accused No.1 to 3 found not guilty and acquitted from the offences punishable under Sec.498(A), 506 read with section 34 of Indian Penal Code and Section 3, 4 of Dowry Prohibition Act.

(ii) Accused are set at liberty.

(iii) In view of Section 437-A of Cr.P.C their bail bonds shall be in force for 6 (six) months.

(iv) Ordered accordingly.

VIII ACJM, Bengaluru.